



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/21/2026 - 09:00 AM

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11:53 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

August 21, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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22-PRO-01044	Estate of Esther M Mazurek	
Line 1	Petitioner: Garcia, Marco (TAGRE, PABLO A. CAPRON, ERIC D.) Decedent: Mazurek, Esther M Interested Party: DEPARTMENT OF HEALTH CARE SERVICES Interested Party: Dowling, Donald J, ESQ Personal Representative: GARCIA, MARCO Personal Representative: GARCIA, MARTHA (TAGRE, PABLO A. CAPRON, ERIC D.) Claimant: DEPARTMENT OF HEALTH CARE SERVICES	Motion to be Relieved as Counsel
Tentative Ruling: APPEARANCE OPTIONAL (Zoom allowed) Motion to be Relieved as Counsel is GRANTED absent cogent objection. The underlying petition remains set for September 2, 2026 at 9:00 a.m.		

23-PRO-01459	Conservatorship of Carol Rider	Continued from 07/17/26 Petition for Order Settling Account and Report of Conservator
Line 2, 3	Proposed Conservatee: Rider, Carol (STREET, MALORIE M) Petitioner: Rider, Richard (STECHEER, STACY K) Petitioner: Rider, Roxanne Elizabeth (STECHEER, STACY K) Conservatee: RIDER, CAROL (STREET, MALORIE M) Conservator: RIDER, ROXANNE ELIZABETH (STECHEER, STACY K)	Conservatorship Review - Annual Petition Hearing
Tentative Ruling: APPEARANCE ORDERED The conservator must appear and explain why she still has not filed of the following documents: - an amended Order Appointing Conservator and amended Letters of Conservatorship that omitted Richard Rider's - GC 040 Inventory and Appraisal; GC 042 Notice of Notice of Filing of Inventory and Appraisal and How to Object to the Inventory or the Appraised Value of Property] Moreover, the First Account is rife with errors and procedural deficiencies. The First Account filed on August 5, 2026 is DENIED for (1) failure to include the Inventory & period of the temporary		



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conservatorship of the estate, (2) failure to file an Inventory & Appraisal as required by Probate Code §2610, (3) failure to utilize the Judicial Council Summary of Account form as required by Probate Code §2620, (4) failure to include separate schedules for property on hand, receipts, disbursements, and gains/losses as required by Probate Code §1062, (5) failure to include the date and purpose of each receipt as required by Probate Code §1062 (a), (6) failure to identify each individual disbursement, including the date and purpose of each disbursement as required by Probate Code §1062(b), and (7) failure to address the issue of bond.

Even though the First Account is denied, the Court will increase the bond and set at \$1,387,000.

Conservator is ordered to file an Amended First Account that corrects these issues within thirty (30) days and a proposed order. Hearing is CONTINUED to January 6, 2027 at 9:00 am for the filing of the Amended First Account.

24-PRO-00781	Conservatorship of Michael Becerra Eduardo Becerra	PERSON AND ESTATE
Line 4	Proposed Conservatee: Becerra, Michael Becerra Eduardo (WILKINS, PAUL A.) Petitioner: Oliva Becerra, Sandra Imelda (GUTIERREZ, LAURELLE M) Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Proposed Conservator: Becerra, Brisa Esther Villa (GUTIERREZ, LAURELLE M) Proposed Conservator: Ojeda, Abraham Proposed Conservator: Oliva Becerra, Sandra Imelda (GUTIERREZ, LAURELLE M) Proposed Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN Temporary Conservatee: BECERRA, MICHAEL EDUARDO Temporary Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE)	Appointment of Conservator for Person and Estate

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Petition for Appointment of Conservator of the Person and Estate is CONTINUED to January 6, 2027 at 9:00 am for Independent Counsel and PCI to file their reports.

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25-PRO-00281	Conservatorship of Simone Marie Michelle Audant	For Petition to file Confidential Conservatorship Care Plan Parts 1 & 2 (forms GC-355 & GC-356).
Line 5	Proposed Conservatee: Audant, Simone Marie Michelle (STREET, MALORIE M) Petitioner: Hennessy , Nikki (Pro Se) Conservatee: Audant, Simone Marie Michelle (STREET, MALORIE M) Conservator: Audant , Gerald Conservator: Hennessy , Nikki	General Plan

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Conservators are ordered to appear and explain why the Confidential Conservatorship Care Plan Parts 1 & 2 (forms GC-355 & GC-356) have not been filed as previously ordered. This matter has been continued twice previously for the same failure, with neither conservator making a court appearance. If Conservators fail to file these documents at or prior to this hearing, the Court intends to issue an order to show cause to Conservators as to why they should not be removed or sanctioned for failure to file the Confidential Conservatorship Care Plan Parts 1 & 2 (forms GC-355 & GC-356) and their failure to appear in court as ordered.

25-PRO-00697	IN THE MATTER OF: THE DORY C. ANDERSEN 2012 LIVING TRUST, DATED AUG. 24, 2012	RE: Status of Settlement & Filing of Dismissal Request
Line 6	Petitioner: McGuire, Lorraine (Pro Se) Trustor: ANDERSEN, DORY C. Respondent: Kljavin, Noelyn (GRUBER, JOSEPH E., JR NASSER, NOELANI)	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Parties to appear and provide status on the filing of an amended Request for Dismissal because the Request for Dismissal filed on 6/16/2026 shows that dismissal was not entered. . *X Dismissal not entered as requested for the following reasons (specify): Please specify which petition you are dismissing*

Lorraine Maguire had filed a motion for leave to amend to file an amended petition, which was set for July 30, 2026. She did not appear on that date. The minutes do not reflect that the request for dismissal was granted. They read: *The court finds/orders: A Request for Dismissal was filed on*



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06/16/26. Per Counsel's representation, the matter is off calendar with the purpose of hearing satisfied.

Parties shall appear and may request dismissal of the entire case on the record.

25-PRO-00755	Conservatorship of ROGELIO SANTOS	cont. from 5/28/26
Line 7	Proposed Conservatee: SANTOS, ROGELIO Petitioner: TERREROS, MARIA (Pro Se) Conservatee: SANTOS, ROGELIO Conservator: TERREROS, MARIA (Pro Se)	General Plan
Tentative Ruling: NO APPEARANCE OFF CALENDAR, purpose of hearing satisfied.		

25-PRO-01088	Estate of MALAMAISUA T CRUZ	FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR; ALLOWANCE OF STATUTORY FEES AND REIMBURSEMENT OF COSTS TO ADMINISTRATOR: ALLOWANCE OF STATUTORY FEES AND REIMBURSEMENT TO ATTORNEY; AND FOR FINAL DISTRIBUTION
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Line 8	Petitioner: Ena, Hilda (BUSCH, ROBERT J., JR) Decedent: CRUZ, MALAMAISUA T Personal Representative: Ena, Hilda	Petition for Final Distribution
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Tentative Ruling:

NO APPEARANCE

Petition for Final Distribution is CONTINUED to January 15, 2027 at 9:00 am for Petitioner to file a supplement that provides the decree of distribution that includes each distributee's name and a description of the property or cash, actual dollar amounts if ascertainable, including bank account location, number and amount, to be distributed as required by Local Rule 4.56.

25-PRO-01127-A	Estate of DOUGLAS DEAN SAMORA	
Line 9	Petitioner: Samora, Douglas J. (COKER, CELYN O.) Decedent: SAMORA, DOUGLAS DEAN Personal Representative: Samora, Douglas J. Claimant: AMERICAN EXPRESS NATIONAL BANK Claimant: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK	Motion to be Relieved as Counsel

Tentative Ruling:

APPEARANCE OPTIONAL

The Motion to be Relieved as Counsel is GRANTED absent cogent objection. The Court sets a status hearing on April 16, 2027 at 9:00 am for status of the filing of either a petition for final distribution or a report of status of administration.

25-PRO-01198	IRREVOCABLE TRUST AGREEMENT OF WARREN RILEY, JR.	Amended Petition to: 1. Surcharge and Remove Trustee Horstman for Breach of Fiduciary Duty; 2. Modify and Terminate Trust; 3. Award Double Damages and Attorney's Fees Under Probate Code Section 850 et seq, and Grant Other Remedies
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Line 10

Petitioner: Riley, Warren, JR (SALASSI, HANNAH R.)
Respondent: Horstman, Robert W. (MINTON, JOHN D.)
Respondent: Hunter, Ashley (SKAGGS, JASON M.)

Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The Amended Petition is DENIED, without prejudice in a very limited fashion.

The Family Court has jurisdiction over all issues arising from the trust created as a result of the marital settlement agreement in FAM0120507. This petition raises issues which are duplicative of issues being litigated in the family law matter. As such, it is not an efficient use of court resources, nor is it economical for either party or the trustee to presently litigate this matter in the Probate court. This court is mindful of two significant facts: 1.) Contrary to the suggestion in the respondent's opposition, petitioner has not sought relief in the family court on a claim of breach of fiduciary duty by the trustee Horstman. Petitioner's inclusion of a footer in his May 15, 2026 RFO in the family law matter which reads "Amended Petition to Surcharge and Remove Trustee for Breach of Fiduciary Duty" is seen by this court as inadvertent. The court takes judicial notice of the RFO, has read it, and finds no such request made. That is important because a beneficiary has standing to bring a claim of breach of fiduciary duty of a Trustee in a probate proceeding. However, this court is deferring any potential litigation on that issue until the matters pending in the Family Court are resolved. To do otherwise would be an undue burden on both the Trustee and Respondent herein. Because the petition is denied without prejudice in a limited fashion, this order in turn will limit any relief Petitioner may seek from the probate court in the future related in any way to the relief sought herein; he may not refile any petition seeking to modify or terminate the trust at issue. Towards that end, those portions of this petition are **denied with prejudice**. The only issue to which prejudice does not attach is the issue of allegations of breach of fiduciary duty of the trustee. However, Petitioner may not file any such petition unless and until the pending matters in the family law case related to this trust and the settlement agreement are concluded. 2.) The court has taken judicial notice of orders after hearing in the Family Law matter, and is mindful that Judge Burdick has found Petitioner's conduct in that case, and that of his attorney, to be purposefully designed to delay further enforcement of the settlement agreement and frustrate the ends of justice. To allow this duplicative petition to proceed would only do precisely what Judge Burdick has already determined has occurred and is not to be tolerated.

The Court denied Respondent's request to award attorneys fees and costs.

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25-PRO-01297	Estate of VIRGINIA ARTHUR WEED	cont. from 6/1/26
Line 11	Petitioner: WEED, KIRSTEN TRACY (GRUBER, JOSEPH E., JR) Decedent: WEED, VIRGINIA ARTHUR Proposed Personal Representative: WEED, KIRSTEN TRACY	Probate of Will and Letters Testamentary Hearing w/ ATA

Tentative Ruling:

NO APPEARANCE

The amended petition will be continued for proof of publication and attachment of a copy of the trust, as this is a pour-over will and the Court wants to ensure that all beneficiaries and trustees named within the trust are given notice. The next hearing is set on September 29, 2026 at 9:00 a.m.

25-PRO-01487	IN RE: 2024 NORMA A. GIBBS REVOCABLE LIVING TRUST, DATED JUNE 18, 2024	RE: The remainder of the Petition for 1. Order for Accounting; 2. Order Suspending, Removing, and Replacing Trustee; 3. Recovery of Damages and Attorney's Fees; 4. Order Preventing Trustee from Using Trust Assets to Defend This Action - Continued on
Line 12	Petitioner: Santos, Gemma (LEYDIKER, STEVEN S.) Petitioner: Santos, Rosalie (LEYDIKER, STEVEN S.) Decedent: GIBBS, NORMA A. Respondent: Santos, Edgardo (BOVARNICK, STEVEN H.)	Status Hearing

Tentative Ruling:

NO APPEARANCE

The Petition is CONTINUED to November 11, 2026 at 9:00 am for status and to be heard with the Accounting Petition. Parties are ordered to file status reports ten (10) days before the next hearing.



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25-PRO-01541	Guardianship of Gabriel Reyes Rivera	Continued on 06/11/2026
Line 13	Petitioner: Rivera, Analyn R. (ALLINSON, E. PAGE) Petitioner: RIVERA, GILL V. (ALLINSON, E. PAGE) Ward: Reyes Rivera, Gabriel Proposed Guardian: Rivera, Analyn R. Proposed Guardian: RIVERA, GILL V.	Appointment of Guardian for Estate of Minor
Tentative Ruling: APPEARANCE OPTIONAL Petition to Appoint Guardian of the Estate is DENIED without prejudice for failure to explain why petitioners request a bond rather than for the funds to be held in a blocked account.		

26-PRO-00224	Estate of Manuel Augustine Torres, JR	
Line 14	Petitioner: Garcia, Lisa C. (PATEL, KARISHMA) Decedent: Torres, Manuel Augustine, JR Proposed Personal Representative: Garcia, Lisa C.	Probate of Will and Letters Testamentary Hearing w/ ATA
Tentative Ruling: NO APPEARANCE The petition will be GRANTED absent cogent objection.		

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26-PRO-00361	Guardianship of Kataleya Blanca Rubio Osorio, Sofia Lucila Rubio Osorio	
Line 15	Petitioner: Osorio, Ignacio Carrizo (YOU, YUYING) Petitioner: Santos, Herlinda (YOU, YUYING) Ward: Rubio Osorio, Kataleya Blanca Ward: Rubio Osorio, Sofia Lucila Proposed Guardian: Osorio, Ignacio Carrizo Proposed Guardian: Santos, Herlinda Legal Father: RUBIO, JOSE ALFREDO Legal Mother: OSORIO-SANTOS, GABRIELLA LUCILA	Appointment of Guardian for Person of the Minor

Tentative Ruling:

APPEARANCE OPTIONAL

Petition is CONTINUED to December 29, 2026 at 9:00 am for Proposed Guardian Herlinda Santos to file an Amended Confidential Guardian Screening Form GC-212 as discussed in the Court Investigator's Report filed on 7/31/2026.

26-PRO-00642	Estate of KATHERINE CHAN LEE	Continued on 06/22/2026
Line 16	Petitioner: LEE, MICHAEL F. (Pro Se) Decedent: LEE, KATHERINE CHAN Proposed Personal Representative: LEE, MICHAEL F.	Letters of Administration Hearing with ATA

Tentative Ruling:

NO APPEARANCE

An amended petition was filed 8/12/2026. There is no proof of service on the successor executors of beneficiaries, although there are two waivers of bond from Kirsten and Amanda. The original will is not lodged with the court. Petitioners seeks to be appointed as executor, yet has completed 3(g)(2) identifying himself as the administrator. The court will not require further publication but the matter will once again be continued in order to cure the deficiencies identified herein. Petitioner need not file an amended petition, but must 1.) lodge the original will with the court; 2.) provide proof of service; 3) submit a declaration which clarifies the confusion described with item 3(g)(2). The next hearing date is September 22, 2026 atm 9:00 a.m.



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PRO113749	CONSERVATORSHIP OF MAYLENE FAY FAY CHAO	
Line 17	Conservatee: CHAO, MAYLENE FAY FAY Conservator: CHAO, JAMES L.Y. (Pro Se) Conservator: CHAO, YVONNE N.L. (Pro Se) Payor: Payor Sister: CHAO, CHARLENE YIN FAY (Pro Se) Sister: CHAO, DORLENE FONG FAY (Pro Se)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

Hearings Total: 17